23STCV17293 23STCV17293

County: los-angeles

Division: Civil Law and Motion

Department: 506

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Case Number: 23STCV17293 Hearing Date: August 4, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

WILLIAM JONES, et al.,

Plaintiffs,

vs.

FORD MOTOR COMPANY, et al.,

Defendants.

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CASE NO.: 23STCV17293

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFFS' MOTION FOR ATTORNEY FEES, COSTS, AND EXPENSES

Dept. 506

8:30 a.m.

August 4, 2026

Plaintiffs William Jones and Robert Pina and Defendant Ford Motor Company have reached a settlement in this Song-Beverly action. On October 6, 2025, Plaintiffs filed a motion for attorney fees costs.

Plaintiffs' request for judicial notice of other trial court orders is denied. The federal orders are unpublished and nonbinding, and the trial court orders are unpublished and nonprecedential. (See Santa Ana Hospital Medical Center v. Belshe (1997) 56 Cal.App.4th 819, 831 ["a written trial court ruling has no precedential value"].)

Plaintiffs' evidentiary objections are overruled.

DISCUSSION

As the prevailing party, Plaintiffs are entitled to an award of reasonable attorney fees and expenses. (Civ. Code, § 1794, subd. (d).) Plaintiffs request a total of $36,690.82, consisting of $26,235.00 in attorney fees ($22,735.00 billed plus $3,500.00 for this motion), $7,957.25 as an additional 0.35 lodestar enhancement, and $2,498.57 in costs and expenses. (Motion at p. 1.)

A. Attorney Fees

California courts apply the "lodestar" approach to determine what attorney fees are reasonable. (See, e.g., Holguin v. DISH Network LLC (2014) 229 Cal.App.4th 1310, 1332.) This inquiry "begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) From there, the "lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid.) Relevant factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (City of Colton v. Singletary (2012) 206 Cal.App.4th 751, 784.)

The billing records reflect $26,235.00 for 42.4 hours of work performed, including work on this motion. (See Shahian Decl., Ex. 1.) Counsel's rates are generally reasonable for experienced attorneys in Los Angeles specializing in these types of cases. But because they are experienced with Song-Beverly litigation, they should be more efficient in those types of cases than less experienced attorneys.

Defendant contends that "Plaintiffs' counsel's excessive, inefficient, and unreasonable entries should be excluded altogether," and "[a]ll challenged entries, and the basis for those challenges, are identified in exhibit E to the Ross Declaration." (Opposition at pp. 11-12.) Including detailed objections to time entries only in a 12-page exhibit to counsel's declaration is an apparent attempt to bypass the 15-page limit for an opposition. (See Reply at pp. 1, 7; see also California Rules of Court, rule 3.1113(d).)

"'In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.'" (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.) The specific challenges in the body of the Opposition involve time spent with amending the complaint. (Opposition at pp. 12-13.)

The number of staff on the case indicates inefficiencies. Plaintiffs acknowledge that 16 attorneys and a law clerk were staffed on this case, but only 5 attorneys "accounted for 26.7 hours out of the 42.4 total hours billed (60%)." (Motion at p. 1, fn. 1.) With so many attorneys working on the case, there were some inefficiencies when each new attorney needed to review the case file to learn the case. The billing records also reflect inefficiencies in the number of hours for certain tasks, such as drafting boilerplate discovery requests and motions. The Court has seen many similar actions brought by Plaintiffs' counsel. The complaints, discovery issues, and fee motions are similar across the cases brought by Plaintiffs' counsel. Therefore, less time is needed to draft these documents, and some deduction is warranted. (See Opposition at pp. 5-6, 12-13.)

Plaintiffs request an additional lodestar multiplier of 0.35. "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation." (Ketchum, supra, 24 Cal.4th at p. 1139.) This matter was not noticeably different from other lemon law cases, did not involve complex or novel legal issues warranting a multiplier, and Plaintiffs' counsel has extensive experience litigating similar matters. Despite the length of time from case inception to settlement, there are no indications that Plaintiffs' counsel engaged in any actions different from a typical strategy to achieve this result.

The Court declines to add a positive multiplier. Instead, the Court will apply a negative multiplier of 0.8 (20% reduction) due to the inefficiencies caused by overstaffing and excessive billing for boilerplate items. (Cash v. County of Los Angeles (2025) 111 Cal.App.5th 741, 749.)

Considering the type of case, complexity of the case, length of litigation, and the record as a whole, the Court concludes that a reasonable amount of attorney fees is $20,988.00 ($26,235.00 billed minus $5,247.00).

B. Costs and Expenses

Defendant argues that all costs should be stricken because Plaintiffs did not file a memorandum of costs and it is not possible to determine what was reasonable. (Opposition at pp. 16-17.)

A prevailing plaintiff in a Song-Beverly action may recover all "costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Code Civ. Proc., § 1794, subd. (d).) "[I]t is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.)

Plaintiffs’ costs and expenses are reasonable, and Defendant’s opposition does not provide any grounds to strike the costs and expenses.

CONCLUSION

The motion for attorney fees and costs is GRANTED IN PART. The Court awards Plaintiffs $20,988.00 in attorney fees and $2,498.57 in costs and expenses.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 4th day of August 2026

Hon. Thomas D. Long

Judge of the Superior Court